



PAKISTAN ENGINEERING COUNCIL (SECOND AMENDMENT) ORDINANCE, 2005

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PAKISTAN ENGINEERING COUNCIL (SECOND AMENDMENT) ORDINANCE, 2005.

ORDINANCE NO. X OF 2005

An Ordinance further to amend the Pakistan Engineering Council Act, 1975

WHEREAS it is expedient further to amend the Pakistan Engineering Council Act, 1975 (V of 1976), for the purposes hereinafter appearing;

AND WHEREAS the National Assembly is not in session and the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE, in exercise of the powers conferred by clause (I) of Article 89 of the Constitution of the Islamic Republic of Pakistan, the President is pleased to make and promulgate the following Ordinance:-

1. Short title and commencement.-(1) This Ordinance may be called the Pakistan Engineering Council (Second Amendment) Ordinance, 2005.

(2) It shall come into force at once and shall be deemed to have taken effect on the 23rd March, 2005.

2. Addition of preamble, paragraphs, Act V of 1976. In the Pakistan Engineering Council Act, 1975 (V of 1976), hereinafter referred to as the Act, after the existing preamble, the following paragraphs shall be added, namely:-

"WHEREAS the Council shall regulate the engineering profession with the vision that the engineering profession shall function as a key driving force for achieving rapid and sustainable growth in all national, economic and social fields;

WHEREAS the Council shall as its mission set and maintain realistic and internationally relevant standards of professional competence and ethics for engineers, technologists and technicians, and license engineers, technologists, technicians and engineering institutions to competently and professionally promote and uphold the standards;

AND WHEREAS the Council, managed by distinguished engineers covering the entire spectrum of engineering disciplines, shall function as an apex body to encourage and promote the pursuit of excellence in engineering profession and to regulate the quality of engineering education and the practice of engineering and technology and thereby promote rapid growth in economic and social fields in Pakistan."

3. Substitution of section 2, Act V of 1976. In the Act, for section 2 the following shall be substituted, namely:-

"2. *Definitions.*—In this Act, unless there is anything repugnant in the subject or the context,

- (i) "Accreditation Committee" means the Accreditation Committee constituted under subsection (1) of section 14;
 - (ii) "accredited, engineering, technology or technician qualification" means any of the qualifications included in the First Schedule or the Second Schedule;
 - (iii) "bye-laws" means bye-laws made under this Act;
 - (iv) "Chairman" means the Chairman of the Council;
 - (v) "constructor" means any person, partnership, corporate body or any other legal entity registered and licensed as such by the Council;
 - (vi) "consulting engineer" means any person, partnership, corporate body or any other legal entity which independently performs study, prepares reports, makes design, supervises construction or undertakes any other similar advisory activities in engineering disciplines and is registered as such by the Council;
 - (vii) "continued professional development" means the systematic maintenance, improvement and broadening of knowledge, understanding and skill, and the development of personal qualities necessary for the execution of professional and technical duties throughout the individual's working life;
 - (viii) "Council" means the Pakistan Engineering Council constituted under section 3;
 - (ix) "creativity" means innovation, invention, hypothesis, theories and such other actions in the realm of engineering profession contributory to development;
 - (x) "engineering institution" means an institution within or outside Pakistan which grants degree, diploma and certificate in engineering and related education and is accredited as such by the Council;
 - (xi) "engineering products" means the products as a result of or the outcome of professional engineering works or engineering profession, or both;
 - (xii) "engineering profession" means engineering education and practices of engineering and technology;
 - (xiii) "engineering public organization" means a department of the Federal Government or a Provincial Government, a Public Corporation, autonomous or semi-autonomous body, cantonment board, municipality, improvement trust or other local authority;
 - (xiv) "engineering services" means services relating to study, preparation of reports, design, supervision, estimation, documentation, evaluation and advising in matters of engineering profession and engineering works;
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- (xv) "engineering university" means a degree awarding university or institution as has more than fifty per cent of their undergraduate and postgraduate programmes as well as student population pertaining to engineering and are recognized as such;
- (xvi) "enrolment committee" means the enrolment committee referred to in subsection (1) of section 17;
- (xvii) "Governing Body" means the Governing Body of the Council;
- (xviii) "learned societies" means institutions and associations for promotion of knowledge and excellence in engineering and technology;
- (xix) "Management Committee" means the Management Committee of the Council;
- (xx) "member" means a member of the Council and includes the Chairman and the Vice-Chairman;
- (xxi) "operator" means any person, partnership, corporate body or any other legal entity registered and licensed as such by the Council;
- (xxii) "prescribed" means prescribed by bye-laws;
- (xxiii) "professional engineer" means a person who holds an accredited engineering qualification and has a minimum experience of five years in the practice of engineering profession, whether working privately or in the employment of an engineering public organization and is registered as such by the Council;
- (xxiv) "professional engineering bodies" means professional engineering institutes, associations and such other bodies registered as such by the Council;
- (xxv) "professional engineering work" means the giving of professional advice and opinions, the making of measurements and layouts, the preparation of reports, computations, design, drawings, plans and specifications and the construction, inspection and supervision of engineering works, in respect of –
- (a) railways, aerodromes, bridges, tunnels and metalled roads;
 - (b) dams, canals, harbours, lighthouses;
 - (c) works of an electrical, mechanical, hydraulic, communication, aeronautical power engineering, geological or mining character;
 - (d) waterworks, sewers, filtration, purification and incinerator works;
 - (e) residential and non-residential buildings, including foundations framework and electrical and mechanical systems thereof;
 - (f) structures accessory to engineering works and intended to house them;
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- (g) imparting or promotion of engineering education, training and planning, designing, development construction, commissioning, operation, maintenance and management of engineering works in respect of computer engineering, environmental engineering chemical engineering, structural engineering, industrial engineering production engineering, marine engineering engineering, and naval architecture, petroleum and gas engineering, metallurgical engineering, agricultural engineering, telecommunication engineering, avionics and space engineering, transportation engineering, air-conditioning, ventilation, cold storage works, system engineering, electronics, radio and television engineering, civil engineering, electrical engineering, mechanical engineering and biomedical engineering etc;
- (h) organizing, managing and conducting the teaching and training of engineering subjects in engineering universities colleges, institutions, government colleges of technology, polytechnic institutions and technical training institutions; and
- (i) any other work which the Council may, by notification official Gazette, declare to be an engineering work for the purposes of this Act.

(xxvi) "Register" means the Register maintained under section 16;

(xxvii) "registered engineer" means a person who holds an accredited engineering qualification, whether working privately or in the employment of an engineering public organization and is registered as such by the Council;

(xxviii) "registered" means registered under this Act;

(xxix) "Registrar" means the Registrar of the Council;

(xxx) "technician" means a person who holds an accredited training or skill certificate and is registered as such;

(xxxi) "technologist" means a person who holds an accredited technology qualification and is registered as such;

(xxxii) "technology" means a knowledge of systematic and practical application of industrial, manufacturing or engineering science;

(xxxiii) "Think Tank" means a creative and innovative body to advise on engineering and national development plans;

(xxxiv) "Think Tank Committees" means bodies of eminent engineers constituted by the Council to assist in formulation of relevant policies relating to national development; and

(xxxv) "university" means a university established by law in Pakistan and having an engineering faculty."

4. Addition of new section 3A, Act V of 1976. In the Act, after section 3, the following new section shall be inserted, namely:-

"3A. *Executive powers of the Council.*-(1) The general direction and administration of the Council and its affairs shall vest in the Governing Body which may exercise all powers and do all acts and things that may be exercised or done by the Council.

(2) Subject to the provisions of this Act, bye-laws and the general or special delegation of powers by the Governing Body and the Management Committee, the Chairman shall be the Chief Executive of the Council and shall also be empowered to take—

- (a) any action or step in emergency which in his opinion requires immediate action as he may consider necessary, subject to ratification by the Governing Body or the Management Committee in the Meeting of such body immediately held thereafter; and
- (b) the powers of the Council in the matters relating to its administration and the staff of the Council shall be exercised by the Chairman, who may delegate such powers to the Registrar subject to such conditions as the Chairman may specify in this regard.

(3) The Council shall be funded through an initial grant by the Federal Government and thereafter continuous financial support shall be provided besides that accrue from registrations, for running the affairs of the Council".

5. Substitution of section 4, Act V of 1976. In the Act, for section 4 the following shall be substituted, namely:-

"4. *Chairman and Vice-Chairman.*-(1) There shall be a Chairman and a Vice-Chairman of the Council; who shall be eminent professional engineers of known integrity, competence, standing and stature with a minimum of twenty-five years of standing.

(2) The Chairman shall be appointed by the Federal Government;

(3) The Vice-Chairman shall be appointed by the Federal Government from a panel of three engineers recommended by Governing Body.

(4) The Chairman and Vice-Chairman shall hold office for an initial term of three years and shall be eligible for reappointment for a similar term consecutively or otherwise.

(5) The Chairman and Vice-Chairman may resign his office by writing under his hand addressed to the Federal Government.

(6) The Federal Government may remove the Chairman or the Vice-Chairman or the Registrar from his office if on enquiry by the competent authority, he is found unable to perform the functions of his office due to mental or physical disability or to have committed misconduct".

(7) The Chairman, the Vice-Chairman, the Registrar/Secretary shall retire on attaining the age of sixty-five years".

6. Amendment of section 5, Act V of 1976. In the Act, in section 5,-

- (a) in subsections (1), for the words "Executive Committee" the words "Governing Body" shall be substituted; and
- (b) in subsection (2), in clause (e), for the words "Executive Committee" the words "Governing Body" shall be substituted.

7. Amendment of section 8, Act V of 1976. In the Act, in section 8,-

- (a) for clause (a) the following shall be substituted, namely:

"(a) maintenance of a Register of persons qualified to work as professional engineers, consulting engineers, technologists, technicians, constructors and operators;

- (b) for clause (b) the following shall be substituted, namely:-

(b) accreditation of engineering and technology qualifications for the purpose of registration of professional engineers, consulting engineers, technologists and technicians;

- (c) in clause (k), the word 'and' appearing at the end, shall be omitted; and

- (d) for clause (1) the following shall be substituted, namely:-

"(l) assistance to the Federal Government as a Think Tank;

(m) promotion of engineering profession in totality;

(n) encouragement, facilitation and regulation of working of professional engineering bodies as learned societies for creativity and as custodian of technology under the umbrella of the Council;

(o) ensuring and managing of continued professional development through engineering academies and professional bodies;

(p) establishing standards for engineering products and services;

(q) facilitating engineering sector industries;

(r) acting as a bridge between various engineering forums and the Federal Government; and

(s) performance of all other functions connected with, or ancillary or incidental to, the aforesaid functions."

8. Substitution of section 9, Act V of 1976. In the Act, for section 9 the following shall be substituted, namely:

"9. Governing Body.-(1) There shall be Governing Body which shall be the principal executive authority of the Council for supervising and governing the affairs and functions assigned to the Council by or under this Act and bye-laws.

(2) The Governing Body shall be composed of the following, namely:-

- (a) the Chairman and Vice-Chairman who shall also be the Chairman and Vice-Chairman of the Governing Body;
- (b) the Registrar;
- (c) two distinguished professional engineers to be nominated by the Federal Government including one from Azad Jamu Kashmir;
- (d) one distinguished professional engineer to be nominated by each Provincial Government;
- (e) all Vice-Chancellors or equivalent office holders of engineering universities or equivalent institutions howsoever named;
- (f) Engineer-in-Chief, Pakistan Army;
- (g) nominees from the following Ministries or Organizations of the Federal Government, not below the rank of Joint Secretary, namely:-
 - (i) Planning Commission;
 - (ii) Ministry of Water and Power;
 - (iii) Higher Education Commission;
 - (iv) Engineering Development Board;
 - (v) Ministry of Science and Technology; and
 - (vi) Chairman/Member Technical from strategic institutions (PAEC, NESCOM and KRL);
- (h) Chairmen/Heads/Senior nominees of such engineering organizations that employ more than five hundred engineers and as notified by the Council;
- (i) elected members including Presidents/Chairmen, being professional engineers and technologists of not less than twenty years professional standing of the following bodies registered with the Council:

Provided that the Council may, in its discretion, add substitute or subtract or modify the list, namely:-

- (i) Association of Consulting Engineers (Pakistan);
 - (ii) All Pakistan Contractors Association or the nominee;
 - (iii) nominee of Federation of Pakistan Chamber of Commerce and Industry;
 - (iv) Institution of Engineers, Pakistan;
 - (v) Institution of Electrical and Electronics Engineers, Pakistan;
 - (vi) Institute of Chemical Engineers, Pakistan;
 - (vii) Institute of Metallurgical and Material Engineers, Pakistan;
 - (viii) Institute of Mining Engineers, Pakistan;
 - (ix) Pakistan Engineering Congress; and
 - (x) any other professional body registered or licensed as such by the Council (e.g. disciplines like Mechanical, Aeronautical, Marine and Telecommunication Engineering, etc);
- (j) fifteen members (Punjab-6; Sindh -4; N.-W.F.P-3, Balochistan-2) to be elected in the prescribed manner by professional engineers whose names are borne on the Register on the thirtieth June of the year in which elections to the Governing Body are to be held; and
- (k) four members nominated by the Council, from private sector.

(3) The members of the Governing Body, other than the Registrar, shall hold office for a term of three years.

(4) The members of the Governing Body shall be nominated or, as the case may be, elected not less than fifteen days before the term of the outgoing members is due to expire.

(5) The Governing Body shall hold at least three meetings per year, the quorum for which shall be thirty per cent of the total membership of the Governing Body."

9. Addition of new section 9A, Act V of 1976. In the Act, after section 9, the following new section shall be inserted, namely:

"9.A. Management Committee.-(1) There shall be a Management Committee, to oversee working of the Secretariat to run the affairs of the Council in accordance with the provisions of this Act and bye-laws.

(2) The Management Committee shall be composed of the following, namely:-

- (a) Chairman;
- (b) Vice-Chairman;
- (c) Registrar; and
- (d) four members nominated by the Governing Body.

(3) The tenure of the Management Committee shall be three years. The Management Committee shall hold meetings once in a quarter, the quorum for which shall be the Chairman or the Vice-Chairman and two members."

10. Substitution of section 10, Act V of 1976. In the Act, for section 10 the following shall be substituted, namely:-

"10. Accreditation of engineering and technology qualifications granted by institutions in Pakistan.-(1) The engineering and technology qualifications granted by engineering and technology institutions in Pakistan which are included in the First Schedule shall be the accredited engineering and technology qualifications for the purposes of this Act.

(2) Any engineering and technology institution in Pakistan which grants an engineering and technology qualification not included in the First Schedule may apply to the Council to have such qualification accredited and the Council may, by notification in the official Gazette, amend the First Schedule so as to include such qualification therein."

11. Substitution of section 11, Act V of 1976. In the Act, for section 11 the following shall be substituted, namely:

"11. Accreditation of foreign engineering and technology qualifications.-(1) The engineering and technology qualifications granted by engineering and technology institutions outside Pakistan which are included in the Second Schedule shall be accredited engineering and technology qualifications for the purposes of this Act.

(2) Any engineering and technology qualification granted by an engineering and technology institution outside Pakistan not included in the Second Schedule may be accredited by the Council, and the Council may, by notification in the official Gazette, amend the Second Schedule so as to include such qualification therein."

12. Amendment of section 12, Act V of 1976. In the Act, in section 12,

- (a) in subsection (1), for the words "Executive Committee" and "recognized" the words "Governing Body" and "accredited" shall respectively, be substituted; and
 - (b) in subsection (2); for the word "Executive Committee" the word "Governing Body" shall be substituted; and
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(c) in subsection (3), for the word "Executive Committee" the word "Governing Body" shall be substituted.

13. Substitution of section 13, Act V of 1976. In the Act, in section 13,-

(a) for the word "recognized" the word "accredited" shall be substituted; and

(b) after the word "engineering" the words "and technology" shall be inserted.

14. Substitution of section 14, Act V of 1976. In the Act, for section 14 the following shall be substituted, namely:-

"14. Accreditation of engineering and technology programmes/ institutions.-(1) The Council shall constitute an Accreditation Committee including representative(s) from HEC for organizing and carrying out a comprehensive program of accreditation of engineering and technology universities/colleges and institutions etc. according to the criterion approved by the HEC in consultation with PEC.

(2) The curricula of courses of studies in various disciplines of engineering and technology and minimum level and standard of such courses including lectures, laboratories, design, drawing and field work shall be examined' and scrutinized by the Accreditation Committee in line with criterion laid down by HEC, who shall submit its report to the Governing Body.

(3) The Accreditation Committee shall be responsible for the inspection of examinations held by the engineering and technology institutions in Pakistan. For such purpose, the members of the Accreditation Committee shall also act as inspectors of examination. The report of the inspectors of examination shall be submitted to the Governing Body through the Accreditation Committee."

15. Amendment of section 15, Act V of 1976. In the Act, in section 15,-

(a) in the marginal heading, for the word "recognition" the word "accreditation" shall be substituted; and

(b) for subsection (1) the following shall be substituted, namely:-

"(1) When upon report by the Accreditation Committee, it appears to the Council that the courses of study and examination to be gone through in any engineering and technology institution in Pakistan in order to obtain an accredited engineering and technology qualification or the standards of proficiency required from candidates in any examination held for the purpose of granting such qualification are not such to secure to person holding such qualification the knowledge and skill requisite for the efficient practice of engineering and technology, the Council shall forward the report to the engineering and technology institution concerned with an intimation of the period within which it may submit its explanation to the Council; and

(c) in the subsection (2), for the word "recognized" the word "accredited" shall be substituted.

16. Amendment of section 16, Act V of 1976. In the Act, in section 16,-

(a) for subsection (1) the following shall be substituted, namely:-

"(1) The Council shall maintain in the prescribed manner a Register in which shall be entered the names and other particulars of persons possessing accredited engineering and technology qualifications whose application for registration as professional engineers, consulting engineers, technologists, technicians, constructors and operators are, from time to time, granted by the Council.";

(b) in subsection (3) for the word "professional engineer and consulting engineer" the words and commas "professional engineer, consulting engineer, technologist, technician, constructor and operator" shall be substituted; and

(c) after subsection (4), the following new subsection shall be added, namely:-

"(5) Every constructor and operator registered under this Act shall be entitled to receive a licence under the hand of the Registrar."

17. Amendment of section 17, Act V of 1976. In the Act, in section 17,-

(a) in subsection (1) for the words "ten years" and "Executive Committee" the words "twenty years" and "Governing Body" shall, respectively, be substituted; and

(b) in subsection (2), for the words "or consulting engineer" the commas and words ",consulting engineer, technologist or technician" shall be substituted.

18. Amendment of section 18, Act V of 1976. In the Act, in section 18,-

(a) in subsection (1),-

(i) for the words "or consulting engineer" the commas and words ",consulting engineer, technologist and technician" shall be substituted; and

(ii) for the words "Executive Committee" the words "Governing Body" shall be substituted; and

(iii) in subsection (2) for the words "Executive Committee" the words "Governing Body" shall be substituted.

19. Amendment of section 19, Act V of 1976. In the Act, in section 19,-

- (a) in subsection (1), for the words "or consulting engineer" the commas and words ",consulting engineer, technologist, technician, constructor or operator" shall be substituted;
- (b) in subsection (2) for the words "or consulting engineer", accruing twice; the commas and words ",consulting engineer, technologist technician, constructor or operator" shall be substituted; and
- (c) in subsection (3), for the words "or consulting engineer, occurring twice; the commas and words ",consulting engineer, technologist, technician, constructor or operator" shall be substituted.

20. Amendment of section 20, Act V of 1976. In the Act, in section 20, in subsection (1), for the words "or consulting engineer" the commas and words ",consulting engineer, technologist, technician, constructor or operator" shall be substituted.

21. Amendment of section 21, Act V of 1976. In the Act, in section 21,-

- (a) in subsection (1),-
 - (i) for the words "and consulting engineers" the commas and words ",consulting engineers, technologist, technicians, constructors and operators" shall be substituted; and
 - (ii) for the words "Executive Committee" the words "Governing Body" shall be substituted.
- (b) in subsection (2), for the words "Executive Committee" and "ten" the words "Governing Body" and "Twenty" shall respectively, be substituted; and
- (c) for the words "Executive Committee" the words "Governing Body" shall be substituted.

22. Amendment of section 22, Act V of 1976. In the Act, in section 22,-

- (a) in subsection (1), for the words "and consulting engineer" the commas and words ",consulting engineers, technologists, technicians, constructors or operators" shall be substituted;
- (b) in subsection (2) for the words "or consulting engineer", the commas and words ",consulting engineer, technologist, technician, constructor and operator" shall be substituted; and
- (c) in subsection (7A), for the words "Executive Committee" the words "Governing Body" shall be substituted

23. Amendment of section 24, Act V of 1976. In the Act, in section 24, in subsection (2) for the words "Executive Committee" the words "Governing Body" shall be substituted.

24. Amendment of section 25, Act V of 1976. In the Act, in section 25.—

- (a) in subsection (1) for the words "Executive Committee" the words "Governing Body" shall be substituted; and
- (b) in subsection (2),-
 - (i) in clause (a), for the word "Executive Committee" the words "Governing Body" shall be substituted; and
 - (ii) in clause (g), for the figure "17" the figure "22" shall be substituted.

25. Amendment of section 25A, Act V of 1976. In the Act, in section 25A,-

- (a) for the words "Executive Committee" the words "Governing Body" shall be substituted;
- (b) in clause (e), for the word "recognition" the word "accreditation" shall be substituted; and
- (c) in clause (f), for the word "recognized" the word "accredited" shall be substituted.

26. Amendment of section 27, Act V of 1976. In the Act, in section 27,-

- (a) in subsection (3), for the words "or consulting engineer" the commas and words ",consulting engineer, technologist, technician, constructor or operator" shall be substituted; and
- (b) after subsection (5), the following new subsection shall be " added, namely:-
"(5A) No person shall, unless registered as a registered engineer, hold any post in an engineering organization where he has to perform professional engineering work."

27. Addition of a new section 31, Act V of 1976. In the Act, after section 30A, the following new section shall be added, namely:-

"31. *Removal of difficulties.*—The Federal Government may, by order provide for the removal of any difficulty which may arise in giving effect to the provisions of this Act or bye-laws made thereunder, not inconsistent with the provisions of this Act. "

28. Amendment of First Schedule, Act V of 1976. In the Act, in the First Schedule,-

- (a) for the word, figure. Brackets and letter `section 2(1)' the word, figure, brackets and letter `section 2(ii)' shall be substituted; and
 - (b) for the word "Recognized", wherever occurring, the word "Accredited" shall be substituted.
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29. Amendment of Second Schedule, Act V of 1976. In the Act, in the Second Schedule,-

- (a) for the word figure, brackets and letter `section 2(1)' the word, figure, brackets, and letter `section 2(ii)' shall be substituted; and
 - (b) for the word "Recognized", wherever occurring, the word "Accredited" shall be substituted.
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